

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PKDC, LLC, *Complainant*

v.

CMA CGM S.A., *Respondent*

DOCKET NO. 24-21

Served: August 25, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER GRANTING JOINT MOTION TO AMEND SCHEDULE

On August 21, 2025, the parties filed a joint motion seeking to amend the scheduling order. (Dkt. 37.) By orders dated April 23, 2025, and June 23, 2025, the scheduling order was previously extended to allow the parties time to complete review and production of the voluminous discovery propounded in this complex proceeding. (Dkt. 27, 34.)

The parties now request an additional extension due to recently discovered errors in their document production. The parties assert that on August 21, 2025, in compliance with the current scheduling order, they produced electronic discovery totaling several tens of thousands of documents. On the same date, Complainant also produced supplemental responses to Respondent's First Interrogatories. During the parties' review of the electronic productions, certain errors were discovered, and on August 19, 2025, the parties met to discuss the problem. As a result of the discussion, it was discovered that Respondent's full production was not provided to Complainant due to an electronic production error. For this reason, Respondent will be supplementing its electronic production with an additional 30,000 documents. As a result of these errors, the parties request an additional sixty days to complete review and production of documents.

The parties have established that additional time is necessary to correct errors that occurred during the electronic exchange of information and develop a complete and accurate record in advance of conducting depositions and briefing. The undersigned finds that an extension of sixty days is reasonable under the circumstances despite that it will necessitate an extension of the deadline to issue an initial decision, which is currently scheduled for November 17, 2025. (Dkt. 28.) Good cause having been stated, it is hereby ordered that the joint motion be **GRANTED**. Accordingly, the parties are hereby **ORDERED** to follow this schedule:

October 20, 2025	Disclosure of initial expert reports, if any
October 20, 2025	Last day to serve interrogatories, requests for admission, and RFPs
November 3, 2025	Complete depositions of fact witnesses
November 3, 2025	Disclosure of rebuttal expert reports, if any
November 18, 2025	Complete expert depositions
November 18, 2025	Close of discovery

December 22, 2025	Complainant's initial brief, proposed findings of fact, and appendix
January 22, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
January 30, 2026	Complainant's reply and responses to proposed findings of fact

MARY A. HERVEY -S

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Mary Apostolakos Hervey
Chief Administrative Law Judge